



A Federal College Sports Framework Moves to the House

What the Senate-passed S.4668 framework could mean for Michigan athletes and institutions - and which decisions would move, remain or overlap.

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College Sports

Athlete Mobility

NIL

Sports Equity

Institutional
Governance

Legislative status

As of September 30, 2026

- On September 24, the Senate adopted the Cruz-Cantwell substitute amendment to S.4668 by 77-23 and invoked cloture on the amended bill by 74-25.^[1]
- On September 28, the Senate agreed 96-1 to the Baldwin amendment modifying the relationship-to-existing-law provision; it also adopted by voice vote amendments on foreign-financing disclosure and conference mergers and acquisitions.^[2]
- Later on September 28, the Senate passed S.4668 as amended by 77-22. The Government Publishing Office has published the engrossed Senate text.^[3]
- The Senate-passed bill now moves to the House for consideration. It has not been enacted into law.^[4]

Current status: The Senate has passed S.4668. The bill is before the House and is not enacted law.

What changed on final Senate action

Passage

S.4668 passed the Senate 77-22 on September 28.

Existing law

The Baldwin amendment modifying the relationship-to-existing-law provision was adopted 96-1.

Foreign financing

A voice-vote amendment added disclosure requirements for specified foreign financing of college athletics.

Conference structure

A voice-vote amendment added provisions governing specified conference mergers and acquisitions.

Executive summary

Federal college-sports policy has entered a more consequential phase. On September 28, the Senate passed S.4668 as amended 77-22, sending a broad proposed federal framework for college athletics to the House for consideration.

The Senate-passed text reaches well beyond name, image and likeness compensation. It addresses athlete agents, transfers, eligibility, scholarships, medical coverage, health and safety, athlete representation, revenue sharing, women's and Olympic sports, recruitment, state-law preemption, foreign financing, sports broadcasting and conference mergers or acquisitions.^[5]

For Michigan, the important question is now larger than whether the Senate would act. Four implementation questions matter more:

1. Which decisions would move into a federal framework, and which would remain with the NCAA, conferences and institutions?
2. How would implementation differ across Michigan's very different athletic institutions?
3. Where would authority overlap rather than transfer?
4. Can athletes and families navigate the resulting system before making consequential decisions?

This brief examines each question and closes with the information problem facing athletes and families.

From NIL legislation to a broader governance framework

The Senate-passed bill would create federal protections for athletes' ability to earn NIL compensation and obtain representation without automatically losing eligibility, scholarships or institutional support. It would expand federal regulation of athlete agents, including registration requirements, a public registry and a proposed five-percent cap on certain agent fees.^[5]

NIL is one component among many.

The legislation includes academic protections designed to limit athletic-department interference with academic choices and to protect scholarships from reduction or revocation because of athletic performance, injury, illness or roster-management decisions. Division I institutions would face requirements involving sports-related medical expenses, catastrophic coverage and post-participation medical care. The proposal would establish health and safety standards and create an independent Student Athlete Ombudsman intended to provide confidential guidance and assistance resolving disputes.^[6]

Taken together, these provisions describe something closer to a national governing framework for college athletics than a narrow NIL bill.

Transfers and eligibility could become federal policy questions

The Senate-passed bill would provide athletes a one-transfer protection without loss of eligibility and establish rules governing additional transfers, with specified exceptions involving coaching changes, discontinued sports, graduate study and certain misconduct-related situations.^[7] It would also establish baseline eligibility requirements for Division I and Division II athletes, including a five-year eligibility framework with specified exceptions.^[8]

For Michigan athletes and families, these provisions could be particularly consequential. Transfer and eligibility decisions are already difficult because the answer depends on the athlete's circumstances, NCAA

rules, institutional interpretations and timing. A federal framework could create greater national uniformity in some areas while adding another layer of authority that athletes must understand.

The practical question for an athlete considering a transfer would remain: which rule controls this decision today, and where can an authoritative answer be obtained before acting?

That distinction matters because a rule explained correctly during one season may not remain correct after federal legislation, NCAA implementation or subsequent litigation changes the governing framework.

Revenue sharing would not affect Michigan institutions uniformly

The Senate-passed bill addresses the emerging revenue-sharing system built around college athletics. The Senate Commerce Committee's summary describes a retention mechanism allowing institutions to spend above the revenue-sharing cap to retain their own athletes, with an additional allowance connected to compensation for athletes in non-revenue-generating sports, including women's and Olympic sports.^[9]

A single federal framework produces different implementation pressures depending on division, conference, mix of sponsored sports and available resources. Michigan's NCAA landscape spans nearly the full range of institutional types, which makes the state a useful test case and makes institution-level analysis more informative than asking what the legislation means for “college sports” as a whole.

Institution tier	Michigan examples	Current structure	Implementation question
Autonomy-conference FBS	Michigan, Michigan State	Division I FBS, Big Ten	Revenue sharing and the retention mechanism; national media-rights provisions; NIL enforcement; roster management; broad-based sport sponsorship
Non-autonomy FBS	Central Michigan, Eastern Michigan, Western Michigan	Division I FBS, Mid-American Conference	Cost of new medical, safety and administrative mandates against materially smaller athletic revenue; competitive position against autonomy-conference spending
Division I without football	Oakland, Detroit Mercy	Division I, Horizon League	Compliance and ombudsman obligations without football revenue; transfer and eligibility provisions
Split-division institutions	Ferris State, Michigan Tech, Lake Superior State, Northern Michigan	Division II membership with Division I men's ice hockey	Whether provisions attach at the institution level or the sport level
Division II — GLIAC	Grand Valley State, Saginaw Valley State, Wayne State, Davenport	Division II, Great Lakes Intercollegiate Athletic Conference	Division II eligibility baselines; which Division I mandates do not reach them; cost of compliance relative to athletic revenue
Division II — Great Midwest	Northwood, Hillsdale	Division II, Great Midwest Athletic Conference	The same baseline questions outside the GLIAC, with different conference resources and mixes of sponsored sports
Division III	Hope, Calvin, Alma, Albion,	Division III, MIAA	Largely outside the Division I

Institution tier	Michigan examples	Current structure	Implementation question
	Adrian, Kalamazoo, Olivet		and II provisions; relevant mainly as a transfer origin and destination
Non-NCAA	NAIA and junior-college programs statewide	Outside NCAA governance	Potentially outside the framework entirely, creating a parallel set of rules for transferring athletes

Scope note: Examples are illustrative rather than exhaustive. Conference affiliation, divisional classification and sport sponsorship can change; confirm the current institutional and NCAA record before relying on the table for a specific decision.

The last row deserves emphasis. If the framework attaches to NCAA membership, an athlete moving between an NCAA institution and an NAIA or junior-college program may cross into and out of the federal protections entirely. That is exactly the kind of seam where navigation failures occur.

Women's, Olympic and non-revenue sports require implementation-level scrutiny

The Senate-passed bill contains provisions intended to protect women's, Olympic and other non-revenue-generating sports, including Division I sport minimums and specified roster and grant-in-aid opportunities, while preserving Title IX's applicability.^[10]

Supporters argue that a national framework could provide greater financial stability and help preserve athletic opportunities outside football and men's basketball. The NCAA has publicly advocated for passage.^[11]

Critics have raised concerns involving the bill's antitrust protections, athlete economic rights, institutional power and how financial benefits and constraints would be distributed. Those concerns have come from labor organizations and civil-rights groups as the Senate debate has intensified.^[12]

These competing claims are empirical, and they resolve only after implementation. If a framework is enacted, Michigan should track what actually happens to roster opportunities, scholarships, sport sponsorship, athlete compensation and institutional spending, disaggregated by sport and by institution type, rather than assuming either the promised protections or the predicted harms will occur uniformly.

Athlete voice and dispute resolution would become more formalized

The Senate-passed bill would require current or recently former athletes to comprise at least one-third of certain athletic-association governing boards and rulemaking committees. It would also create an independent Student Athlete Ombudsman offering confidential, no-cost guidance and assistance resolving concerns involving institutions, conferences or athletic associations.^[13]

Both provisions deserve attention beyond their formal structure. Representation on a governing board does not establish how much influence athletes exercise over decisions. An ombudsman becomes meaningful only if athletes know it exists, understand when to use it and can obtain timely assistance before an irreversible eligibility, contractual or institutional decision occurs.

A formal right and a usable pathway are not the same thing, and the difference is measurable: awareness, time to first contact, time to resolution, and whether the athlete reached the office before or after the decision became irreversible.

State authority would change without disappearing

The Senate-passed bill would preempt conflicting state and local laws in specified areas involving NIL, transfers and eligibility while preserving other areas of law, including civil rights, privacy, contracts, consumer protection, criminal law and campus safety. It also states that it does not determine whether student athletes are employees or non-employees.^[14]

For Michigan, that distinction is important. A federal college-sports framework would not make every athlete-related question exclusively federal. Athletes would continue to encounter layered authority:

Sports wagering introduces a further distinction, because the legal availability of a product to the general public does not establish whether an athlete may participate under eligibility or integrity rules.

The challenge shifts from knowing the rules to knowing which institution has authority over the particular decision being made.

The business structure of college sports is part of the proposal

S.4668 extends into the business structure of college sports. The Senate-passed text addresses pooled media rights and broadcast access, and a September 28 voice-vote amendment added rules governing certain conference mergers and acquisitions.^[15]

These provisions are particularly relevant to Michigan and Michigan State given their position in the Big Ten's national media market.

They also demonstrate why college-sports policy can no longer be divided into separate conversations about NIL, athlete rights, conference realignment and media. Those systems now interact, and a change in one propagates to the others.

The information problem facing athletes and families

The current debate exposes a larger issue.

An athlete may need to make decisions involving NIL contracts, agents, transfers, eligibility, institutional compensation, sports wagering, healthcare or academic continuation. In a period when the governing framework is itself changing, memorizing a static set of rules is not a safe response.

1	Recognize the decision
2	Identify the governing authority
3	Verify the current rule
4	Understand the consequence
5	Obtain qualified assistance when necessary
6	Document the decision

That sequence is central to Michigan Sports Opportunity, Northstar Civic Institute's developing work on athlete mobility and informed decision-making. The purpose is not to tell athletes what to choose. It is to improve their ability to determine who holds authority, what information is reliable and what must be verified before a consequential decision becomes irreversible.

What Michigan should watch next

With Senate action complete, NCI is tracking five questions:

1. **House pathway.** How the House handles the Senate-passed text, including whether it advances the bill unchanged, modifies it or takes no action.
2. **Text differences.** If the House changes the measure, which provisions would require reconciliation between the chambers.
3. **Differentiation.** Which provisions apply differently by division, conference or institutional type, and which institutions fall outside the framework entirely.
4. **Authority.** How the Senate-passed federal rules would interact with NCAA, conference, institutional and remaining Michigan authority if enacted.
5. **Outcomes.** If enacted, whether athlete protections, sport-equity provisions and institutional responsibilities produce measurable results in practice.

Michigan needs the capacity to follow a college-sports system in which authority, financial incentives and athlete rights are changing at the same time. Explaining one more piece of legislation is not sufficient.

What NCI will track

Northstar Civic Institute is building an institution-by-institution analysis of how a federal college-sports framework would reach Michigan's athletic programs, organized around the tiers described above. It examines implications for large and small programs, prospective and current athletes, women's and Olympic sports, NIL markets, transfers, eligibility, sports wagering and institutional governance.

If legislation is enacted, the work moves from legislative analysis to implementation measurement:

- What actually changed for Michigan athletes?
- Which institutions absorbed new responsibilities, and at what cost relative to their athletic revenue?
- Which protections became usable in practice rather than only available on paper?
- Where did athletes continue to experience navigation failures?

Those questions will matter longer than the current floor debate.

Sources

1. [U.S. Senate roll-call list for S.4668, including votes 242, 243, 245-250](#)
2. [U.S. Senate wrap-up for September 28, 2026, listing amendments and final passage](#)
3. [U.S. Senate Roll Call Vote 250: passage of S.4668 as amended, 77-22](#)
4. [U.S. Senate Commerce Committee: Senate passage and House next step](#)
5. [Senate-engrossed S.4668, table of contents and Title I provisions](#)
6. [Senate-engrossed S.4668, academic, medical, health and safety, and ombudsman provisions](#)
7. [Senate-engrossed S.4668, transfer protections](#)
8. [Senate-engrossed S.4668, eligibility provisions](#)
9. [Senate-engrossed S.4668, compensation and revenue-sharing provisions](#)
10. [Senate-engrossed S.4668, protections for women's, Olympic and non-revenue sports and Title IX savings](#)

- 11. [NCAA advocacy for passage of the Protect College Sports Act](#)
- 12. [AFL-CIO opposition statement; NAACP opposition statement](#)
- 13. [Senate-engrossed S.4668, Student Athlete Ombudsman and athlete-governance representation](#)
- 14. [Senate-engrossed S.4668, relationship to existing law and employment-status neutrality](#)
- 15. [Senate-engrossed S.4668, media-rights, broadcast-access and conference merger/acquisition provisions](#)

House-stage monitoring checklist

House action	Track committee referral, hearings, amendments, floor scheduling and any House-passed text.
Chamber differences	If the House changes the bill, identify the provisions that would require reconciliation before enactment.
Implementation trigger	If identical text clears both chambers and is signed, shift from proposal analysis to agency, association and campus implementation timelines.
Post-enactment change	Track litigation, federal guidance, NCAA/conference rules and institutional policies that alter how the statutory framework operates in practice.
Evidence boundary S.4668 passed the Senate on September 28, 2026, but is not enacted law. House action, later chamber reconciliation, executive action, litigation, association rules and institutional implementation could change the practical framework. This brief is for research and educational purposes and does not constitute legal advice.	